



File No.: EXP202401246

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 14, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EUROBOX, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202401246 (PS/00109/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURES

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 18, 2023. The complaint is directed against EUROBOX, S.A. with NIF A11611282 (hereinafter, EUROBOX). The reasons on which the complaint is based are as follows: The complainant states that their account at ***ACCOUNT.1 has been suspended and to reactivate it, they have been asked for documentation proving their identity, residence, and employment and financial situation. They indicate, "I answer all their questions, despite completely doubting the legality of these," and after having provided all the documentation requested by the entity, their account has still not been reactivated.

Along with the notification, a series of emails exchanged between the complainant and EUROBOX is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to EUROBOX, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on January 23, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: On February 18, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 21, 2024, a written response to the forwarding of the complaint was received by this Agency, indicating that they requested a series of documents from the complainant because their behavior in using EUROBOX's services was indicative of a professional player, which is specifically prohibited by Article 2 a) of Law 13/2011, and as a consequent measure implemented to address violations of the terms and conditions governing said gaming platform, concluding that there had indeed been a breach of the terms and conditions of the contract, for which the complainant's account was suspended, without informing them as it was confidential information of the operator. On the other hand, regarding the request for the chat conversations of EUROBOX requested by the complainant, the company claims to have sent them and that they had no record of any request to exercise the right of access. However, there was a request for information dated October 23, 2023, which EUROBOX acknowledges was not properly attended to due to human error.

FIFTH: According to the report collected from the AXESOR tool, the entity EUROBOX, S.A. is a microenterprise established in 1981, with a turnover of 557,369 euros in 2021.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions..."

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, according to the provisions of articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since EUROBOX, in the course of its business activity, collects and retains personal data of individuals, among other processes.

EUROBOX carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of article 4.7 of the GDPR.

Among the principles of processing provided for in article 5.1 of the GDPR, there is, in its paragraph c), the principle of data minimization, while article 13 of the GDPR regulates the "information that must be provided when personal data is obtained from the data subject."

III

Data Minimization

Article 5 of the GDPR, "Principles relating to processing," establishes that personal data shall be:

"a) [...]

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

[...]

The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ('proactive responsibility')."

For our constitutional jurisprudence, if the right to privacy acts as a barrier against interference or intrusions by others (STC 142/1993, of 22/04), the right to data protection "consists of a power of disposition and control over personal data" (SSTC 290 and 292/2000, of 30/11); if the right to privacy limits third parties' knowledge of certain aspects of the person (intimate aspects or those related to their private and family life), the right to data protection provides guarantees of disposition and control regarding personal data that may or may not belong to the realm of intimacy and that may be subject to knowledge and handling by others; if the right to privacy is a right of abstention by others regarding our personal sphere, the right to data protection primarily implies self-determination over our data.

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In the present case, on October 16, 2023, EUROBOX requests the following data from the complainant: registered address, current profession, gross annual salary, whether they play with their own funds or those provided by third parties, and the last payslip or quarterly declaration in the case of being self-employed. The request for this data, according to this email, is based on EUROBOX's "Safer Gaming" policy. However, in the response to the transfer of the complaint made by this Agency, EUROBOX stated that "The suspension of the gaming account was taken in response to the

identification of behavior indicative of a professional player, as specifically prohibited by Art 2 a) Law 13/201, and as a consequential measure implemented to address violations of the established T&Cs; governing the gaming platform." Therefore, the purpose for which all this data is requested is not clear, nor is it clear to what extent it is necessary to identify the behaviors referred to by EUROBOX in order to achieve safer gaming or whether the behavior of the complainant is indicative of a professional player.

Regarding EUROBOX's Privacy Policy, in its section 2, it includes information related to the processing of personal data that does not require user consent, and in section 3, those that require user consent (pages 11 to 14 of the file). In both sections, the personal data that will be processed by EUROBOX is listed. In none of these sections is it expressly stated that data such as profession, gross annual remuneration, or the source of all their income may be collected. There is a mention of "any other information that may be exchanged between EUROBOX and the User," which would imply that EUROBOX could request all kinds of data from its users. On the other hand, in clause 7 of the contract (page 34 of the file), there is no provision for the requirement of this data from EUROBOX users in the event of breach of contract or applicable law; it only mentions the possible suspension of the service or the closure of their user registration.

EUROBOX cannot request all kinds of data from its users, as occurs in the emails sent to the complainant, in which, in no case, is it justified why such data is needed nor do they seem relevant for the purpose for which they are requested.

It is worth mentioning the considerations regarding the principle of data minimization made by the European Data Protection Board (EDPB), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation, attributed by article 70 of the GDPR, adopted on October 20, 2020, Guidelines 4/2019 on Article 25 Data Protection by Design and by Default (https://edpb.europa.eu/system/files/2021-04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_es.pdf). In paragraph 76 of these guidelines, it is established that

"Essential elements from design and by default regarding data minimization may include the following:

- Data avoidance: All processing of personal data will be avoided when possible to fulfill the relevant purpose.
- Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.

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- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.

- Necessity: Each category of personal data must be necessary for the specified purposes and may only be processed if it is not possible to achieve the purpose by other means.

From the application of these characteristics of the data minimization principle, it follows that the collection of the claimant's data carried out by EUROBOX cannot be justified, as the personal data is neither necessary nor relevant to a processing purpose that has not even been properly identified. Therefore, in accordance with the evidence available at this time regarding the initiation of sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement attributable to EUROBOX for violation of Article 5.1(c) of the GDPR.

IV

Classification and qualification of the infringement

If confirmed, the aforementioned infringement of Article 5.1(c) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR

or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD states:

Article 72. Very serious infringements.

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Proposal for sanction for the infringement of Article 5.1(c) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Article 83 of the GDPR must be observed, which states:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

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i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Regarding this last item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and corrective measures," provides:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may

also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed on the entity claimed as responsible for an infringement of the provisions of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, an initial assessment considers the following factors to be concurrent in the present case:

As aggravating criteria from Article 83.2 of the GDPR applied as aggravating factors:

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Article 83.2.a) of the GDPR: The number of affected individuals. Although there is only one claimant, EUROBOX's customers may have been affected by this type of practice regarding the amount of data collected.

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Article 83.2.g) of the GDPR: The categories of personal data affected by the infringement. The processing affected, among others, financial personal data. These are data that deserve special protection.

As a criterion for graduation from Article 76.2 of the LOPDGDD, applied as an aggravating factor:

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Article 76.2.b) of the LOPDGDD: The connection of the infringer's activity with the processing of personal data: EUROBOX, in the development of its online gaming platform business activity, needs to routinely process personal data, which means that it has sufficient experience and should have the appropriate knowledge for the processing of such data.

It is appropriate to graduate the sanction to be imposed on the claimed entity and set it at the amount of €8,000 (eight thousand euros) for the infringement of Article 5.1.c) of the GDPR classified in Article 83.5.a) of the GDPR.

VI

Information to be provided when personal data is obtained from the data subject

Article 13, "Information to be provided when personal data is obtained from the data subject," of the GDPR states:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;
f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

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a) the period during which personal data will be retained or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request access to personal data concerning the data subject from the data controller, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any pertinent additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

In the present case, it is not recorded that EUROBOX has provided the claimant with the information required by Article 13 of the GDPR at the time when their data was obtained. In the email dated October 16, 2023, EUROBOX requests a series of data from the claimant: to justify the registered address, in order to “carry out an additional verification of your account,” and to provide a series of data based on the “Safer Gaming” policy.

No information is provided to the claimant regarding the purposes of the processing to which the personal data is destined and the legal basis for the processing.

As argued in this document, the purpose for which this personal data is requested by EUROBOX is not even clear. If it was in compliance with its “Safer Gaming” policy, no information was given to the claimant regarding which clause of its Terms and Conditions of Contract refers to this circumstance. If, as stated in the response to the transfer, it was requested due to detecting behavior indicative of a professional player, the legal basis that determined the lawfulness of the processing was also not cited.

Without prejudice to the fact that EUROBOX's request for data from the claimant may constitute excessive data processing, information about these categories of data should be included in its Privacy Policy.

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Therefore, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to EUROBOX for violation of Article 13 of the GDPR.

VII

Classification and qualification of the infringement of Article 13 of the GDPR

If confirmed, the aforementioned infringement of Article 13 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22;"

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

VIII

Proposal for sanction for the infringement of Article 13 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

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IX

Adoption of Measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...", the resolution adopted may require EUROBOX to provide this Agency with evidence of the adoption of the following measures within a period of 3 months, without prejudice to others that may arise from the instruction of the procedure:

- Adjust its actions to the principle of minimization and only collect data relevant to the service.
- Adapt the information in its Privacy Policy to ensure information in accordance with Article 13 of the GDPR regarding the personal data that may be collected from the data subjects.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to

the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against EUROBOX, S.A., with NIF A11611282, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, and for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

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- For the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 8,000.00 euros.

- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 2,000.00 euros.

FIFTH: TO NOTIFY this agreement to EUROBOX, S.A., with NIF A11611282, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 8,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 8,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (8,000.00 euros or 6,000.00 euros), it must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the

Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 30, 2024, the respondent has proceeded to pay the fine in the amount of 6000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Digital Rights Guarantee (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202401246, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER EUROBOX, S.A. to notify the Agency of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution within 3 months from the date this resolution becomes firm and enforceable.

THIRD: TO NOTIFY this resolution to EUROBOX, S.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Agency for Data Protection

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